



SPONSOR: Rep. Ross Levin & Sen. Pinkney
Reps. Berry, Gorman, Heffernan, K. Johnson, Lambert,
Morrison, Neal, Phillips, Romer, Snyder-Hall,
K. Williams; Sens. Cruce, Lockman, Seigfried, Townsend

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 265

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO SEXUAL OFFENSE REPORTING
AND IMMUNITY FOR CERTAIN CRIMES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Part D, Subchapter II, Chapter 5 of Title 11 of the Delaware Code by making deletions as
2 shown by strike through and insertions as shown by underline as follows:

3 § 762A. Immunity relating to sexual offense reporting.

4 (a) As used in this section:

5 (1) “Alcohol offense” means any civil penalty, violation, or misdemeanor offense involving the possession or
6 consumption of alcoholic beverages, including § 1315 of this title (public intoxication) and § 904(b), (c), (e), and (f) of
7 Title 4 (offenses related to underage drinking).

8 (2) “Drug offense” means any civil penalty, violation, or misdemeanor offense involving the possession or
9 consumption of drugs, including §§ 4761, 4763, 4764, or 4771(a) of Title 16.

10 (3) “Sexual offense” means any offense in Part D, Subchapter II, Chapter 5 of this title.

11 (b) A person may not be issued a citation, charged, arrested, or prosecuted for an alcohol offense or a drug offense
12 if the following apply:

13 (1) The person in good faith seeks to report a sexual offense, request assistance for a victim of a sexual
14 offense, or is a victim or witness to a sexual offense

15 (2) The evidence for the drug offense or alcohol offense was obtained as a result of the report or request for
16 assistance related to the sexual offense.

17 (3) The person provides their full name, contact information, and sufficient information to determine that a
18 sexual offense may have occurred.

19 (4) The person is not alleged to have committed the sexual offense.

20 (c) A person’s pretrial release, probation, or parole may not be revoked or modified based on an incident for which
21 the person would be immune from prosecution under subsection (b) of this section, nor may an incident for which a person

22 would be immune from prosecution under subsection (b) of this section be used as the basis for a violation of probation or a
23 warrant or notice to appear for a violation of a condition of probation or suspension of sentence.

24 (d) Nothing in this section precludes either of the following:

25 (1) Prosecution of a person based on evidence from an independent source.

26 (2) Investigation or prosecution of other crimes or violations committed by a person who otherwise qualifies
27 for limited immunity under this section.

SYNOPSIS

This Act provides limited immunity from prosecution for persons who seek to report a sexual offense. Under this Act a person who is a victim or witness or otherwise seeks law enforcement assistance in relation to a sexual offense may not be charged, arrested, or prosecuted, or issued a civil citation for low-level crimes relating to drug or alcohol use or possession. This Act also provides that a person's probation or pretrial release status may not be revoked or changed based on an incident for which the person would receive the limited immunity from prosecution provided under this statute.